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California passes bill phasing out 'ultra-processed' foods from school meals

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California will ban schools from selling ultra-processed foods, 10 months after Gov. Gavin Newsom ordered state agencies to probe the health effects of certain food dyes and draft regulations for selling soda, candy and other foods that are additive-heavy.

Newsom announced Wednesday that he was signing Assembly Bill 1264 from Assemblymember Jesse Gabriel, D-Encino, which defines ultra-processed foods and sets up a timeline for phasing them out of school meals by 2032. The law would apply to all school districts and charter schools with students in kindergarten or any grade 1 to 12.

During a press conference at Belvedere Middle School in East Los Angeles, Newsom and First Partner Jennifer Siebel Newsom touted the law as the first in the nation to ban ultra-processed foods in schools, part of their ongoing campaign to promote healthy nutrition for children.

"The idea that we are ordering food from overseas, processed, that comes back here when we have this abundance in our own backyard, seemed rather absurd," Newsom said.

California has cracked down in recent years on foods with dangerous additives and synthetic dye, including some chips and candy, after research showed a link between them and adverse behavior in children like hyperactivity, as well as rising obesity.

Gabriel has been behind several of those bills and described a productive partnership with Newsom.

"The governor recognized long before most that this was important, and he was willing to stand up and be counted even when some were mocking California," he said.

Newsom echoed those remarks, saying he remembered being made fun of by conservative pundits.

"Now everyone's jumping over each other, Louisiana, all these conservative states trying to get in on this, which is sort of interesting and I think, wonderful at the same time," he said.

Health and Human Services Secretary Robert Kennedy Jr. has branded his crackdown on additive dyes as part of the movement to "Make American Healthy Again."

Under AB 1264, ultra-processed foods are defined as those that are high in flavoring agents, saturated fats, sodium and sugar and/or added sweeteners. They can include packaged snacks, carbonated soft drinks, instant noodles and ready-made meals, according to a review by the BMJ medical journal.

"Processed foods are part of a healthy diet, but ultra-processed foods, or UPFs, are different from processed foods because they combine cosmetic ingredients and additives in ways that make our food literally irresistible, not just delicious," said Scott Faber with the Environmental Working Group, a nonprofit environmental research and advocacy organization that worked on the earlier food dye ban.

"What is happening here today is truly historic," Faber added.

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